

technology, which may require a delay of or halt the proceedings. To help avoid such, please log in and test your equipment in advance of the hearing. Also, if technological or audibility issues arise during the proceeding, please call **(657) 622-5908**.

All remote video participants shall comply with the court's "**Guidelines for Remote appearances**", found at <https://www.occourts.org/system/files/guidelinesforremoteproceedings.pdf>.

IN-PERSON: Parties preferring to appear in-person for a law and motion hearing may do so, consistent with Section 367.75 of the Code of Civil Procedure and Orange County Local Rule 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

April 15, 2025

#	Case Name	
1	Vazquez vs. Ashleigh Aiken, in her capacity as mayor of the City of Anaheim	<u>Demurrer</u> The court OVERRULES Respondent and Defendant CITY OF ANAHEIM's (the "City") general demurrer to each of the five causes of action in the Petition for Writ of Mandate and Complaint for Injunctive and Declaratory Relief (the "Petition"). (Code of Civ. Proc., § 430.10(e).) The Petition contains the following five causes of action: (1) writ of mandate – Code of Civ. Proc., § 1085, (2) injunctive relief, (3) declaratory relief, (4) restitution, and (5) violation of Civil Rights – 42 U.S.C. § 1983. <i>5th C/A (violation of civil rights)</i> First, the court notes that Petitioners dismissed the fifth cause of action on 12/17/24. (Request for Dismissal, filed 12/17/24 [ROA 87].)

As such, **the demurrer to the fifth cause of action is OVERRULED as MOOT.**

Remaining C/As:

All of the remaining causes of action challenge City of Anaheim regulations enacted under Ordinance 6449 § 3. Specifically, the first cause of action (for writ of mandate) alleges that the City breached its duty to carry out their sidewalk vending ordinances in full compliance with Government Code sections 51036 et seq., including a duty “not cite, fine, or prosecute a sidewalk vendor for a violation of any rule or regulation that is inconsistent with the standards described in subdivision (b) Section 51038.” (Pt’n, ¶¶ 27, 34.) The second cause of action (for injunctive relief) seeks an injunction prohibiting the City from enforcing the Anaheim Municipal Code Chapter 4.52 and 4.10.010, and barring City Code Enforcers and Officers from engaging in harassing conduct related to these portions of the Municipal Code. (Pt’n., ¶ 41.) The third cause of action seeks a judicial declaration that the Anaheim Municipal Code Chapter 4.52 and 4.10.010 sections violate Government Code sections 51036 et seq., that the City has denied Petitioners their rights by adopting and enforcing the challenged Anaheim Municipal Code sections, including, but not limited to, harassing conduct by city officers, citations, and impoundment of personal property. (Pet. ¶ 46.) Finally, the fourth cause of action asserts that Petitioners are entitled to restitution for the goods and wares confiscated by the City. (Pt’n, ¶ 50.)

Rather than addressing each cause of action separately, the City makes the following four arguments as to each cause of action: (1) the cause of action is time-barred, (2) Petitioners failed to exhaust their administrative remedies, (3) the City’s provisions are authorized as time, place, and manner regulations to address objective health, safety, and welfare concerns, and (4) Government Code section 51039 applies only to criminal punishments, and does not prohibit purely civil remedies such as impoundment.

(1) Statute of Limitations

First, the City contends each of Petitioners' claims is barred by the three-year statute of limitations in Code of Civil Procedure section 338(a) because the City's obligation to comply with SB 946 is a statutory obligation that accrued in 2018, when the City last amended its vending ordinance in 2018 relating to the Resort Area prohibition.

"[F]or a demurrer based on the statute of limitations to be sustained, the untimeliness of the lawsuit must clearly and affirmatively appear on the face of the complaint and matters judicially noticed. [Citation.]" (*Coalition for Clean Air v. City of Visalia* (2012) 209 Cal.App.4th 408, 420.)

Code of Civil Procedure section 338(a) provides a three-year statute of limitations for cases asserting liability created by statute. (Code Civ. Proc., § 338(a).) A liability is "created by statute" within the meaning of section 338 "[w]here a statutory scheme has been adopted that gives rise to newly created rights." (*Winick Corp. v. General Ins. Co.* (1986) 187 Cal.App.3d 142, 145.)

Preemption claims accrue on the effective date of the assertedly preempted statute. (*County of Sonoma v. Superior Court* (2010) 190 Cal.App.4th 1312, 1326 [holding where the gravamen of the plaintiff's action is a challenge to the validity of an ordinance, the claim accrues upon the effective date of the ordinance]; *see also Travis v. County of Santa Cruz* (2004) 33 Cal.4th 757, 773 [preemptive statute]; *Howard Jarvis Taxpayers Ass'n v. City of La Habra* (2001) 25 Cal.4th 809, 815 [holding that generally, a cause of action accrues upon the occurrence of the last element essential to the cause of action].)

Here, Petitioners' claims are not clearly and affirmatively time-barred on the face of the Petition. As the court noted in its prior ruling, Petitioners here challenge the City's authority to impound street vendors' property. (See ROA # 123 [citing Petition at ¶¶ 22, 32, 35, 46].) Judicially noticeable facts show the relevant ordinance was adopted in 2024 (see RJN, Exs. E, I), and Petitioners filed this action later the same year.